

24STCV21986 24STCV21986

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-19

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Case Number: 24STCV21986 Hearing Date: August 19, 2026 Dept: 406

ERIKA ZIMMERMAN, et

al.,

Plaintiffs,

v.

GROWTH CENTERS OF

AMERICA, et al.,

Defendants.

Case No.: 24STCV21986

Hearing Date: August 19, 2026

[TENTATIVE]

order RE:

defendant growth management, inc.'s

motion for protective order (CRS# 3650)

BACKGROUND

On August 28, 2024, Plaintiffs Erika

Zimmerman and Kenya Johnson filed this action against various defendants,

alleging discrimination, harassment, retaliation, and wage violations.

Plaintiffs filed the operative Second Amended Complaint on May 20, 2025.

On March 4, 2026, the Court granted Plaintiffs' motions to compel the deposition of Defendant Growth Management, Inc.'s PMQ. The depositions proceeded on June 5 (Joy Lewis) and June 10 (John Lewis). The June 10 deposition was suspended after a dispute over scope.

On July 1, 2026, Defendant Growth Management, Inc. filed the instant motion for a protective order in relation to the deposition of its PMQ. Plaintiff Zimmerman filed an opposition on August 6, 2026. Defendant filed a reply on August 12, 2026.

LEGAL STANDARD

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order." (Code Civ. Proc., § 2025.420(a).) "The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Id., subd. (b).) "The issuance and formulation of protective orders are to a large extent discretionary." (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 316.) "[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought." (Id. at p. 318.)

DISCUSSION

Defendant has not articulated sufficient cause for refusing to produce a PMQ entirely for topics 4, 5, 7, and 8 or for refusing to produce any documents. The requested information is relevant or reasonably calculated to lead to admissible evidence. (See Code Civ. Proc., § 2017.010.)

Defendant also makes a vague request "that any further document production be targeted, sequenced, exclude materials already produced, and be governed by privilege logs and an appropriate protective and de-identification order." (Mtn. 15:17-19.) Defendant does not specify the relief sought, e.g., whether the purportedly problematic requests should be stricken or limited, or how they should be limited.

CONCLUSION

Defendant Growth Management, Inc.'s
motion for protective order is DENIED.

ERIKA ZIMMERMAN, et
al.,

Plaintiffs,

v.

GROWTH CENTERS OF
AMERICA, et al.,

Defendants.

Case No.: 24STCV21986

Hearing Date: August 19, 2026

[TENTATIVE]
order RE:

plaintiffs' motions for sanctions (CRS# 7695,
9330)

BACKGROUND

On August 28, 2024, Plaintiffs Erika
Zimmerman and Kenya Johnson filed this action against various defendants,
alleging discrimination, harassment, retaliation, and wage violations.
Plaintiffs filed the operative Second Amended Complaint on May 20, 2025.

On March 4, 2026, the Court granted
Plaintiffs' motions to compel the deposition of Defendant Growth Management,
Inc.'s PMQ. The depositions proceeded on June 5 (Joy Lewis) and June 10 (John
Lewis). The June 10 deposition was suspended after a dispute over scope.

On June 22, 2026, Plaintiffs filed

the instant two motions for sanctions for Defendant's purported failure to abide by the Court's March 4 order. Defendant filed oppositions on August 6, 2026. Plaintiffs filed replies on August 11, 2026.

LEGAL STANDARD

The Court may impose monetary or nonmonetary sanctions against a party engaging in misuse of the discovery process. (Code Civ. Proc., § 2023.030.) Misuse of the discovery process is defined as, among other things, failing to respond to an authorized method of discovery, making an evasive response to discovery, or disobeying a court order for discovery. (Id., § 2023.010.) If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.)

"The penalty should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (*Wilson v. Jefferson* (1985) 163 Cal.App.3d 952, 959.) Generally, two facts are prerequisite to the imposition of nonmonetary sanctions: (1) there must be a failure to comply with a court order; and (2) the failure must be willful. (*Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1327.)

DISCUSSION

Defendant did not file an opposition to the motion to compel or otherwise substantiate its objections to the deposition notice. Therefore, the Court found no support for the objections, ordered the deposition to proceed, and ordered Defendant to produce documents in accordance with the notice. Defendant subsequently refused to produce a PMQ for topics 4, 5, 7, and 8, and produced no documents. This constitutes a failure to abide by the Court's order.

Defendant has not articulated sufficient cause for refusing to produce a PMQ entirely for topics 4, 5, 7, and 8 or for refusing to produce any documents. The requested information is relevant or reasonably calculated to lead to admissible evidence. (See Code Civ. Proc., § 2017.010.) Defendant's cited cases are distinguishable. *Calcor*

Space Facility v. Superior Court (1997) 53 Cal.App.4th 216 concerned a subpoena to a third party, and Bowen v. Ziasun Technologies, Inc. (2004) 116 Cal.App.4th 777 concerned the granting of summary judgment.

Accordingly, a further deposition is warranted. However, evidentiary sanctions are disproportionate at this stage.

CONCLUSION

Plaintiffs' motions for sanctions are GRANTED. The court imposes monetary sanctions against Defendant Growth Management, Inc. in the amount of \$11,120.00 (twenty hours at \$550.00 per hour and \$120 in filing fees.) Defendant Growth Management, Inc. shall pay these fees within thirty days of this order.

Defendant Growth Management, Inc. shall produce its PMQ(s) for deposition on _____ on all topics. Defendant shall produce documents in accordance with the deposition notice.